

Court No. - 5

Case :- WRIT - C No. - 13858 of 2020

Petitioner :- Ram Das

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Kumar Chaurasia, Ashok Kumar Chaudhary

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Learned counsel for the petitioner prays for and is granted three days' time to serve a copy of this writ petition upon the counsel for the respondent nos. 2 and 3.

Put up as a fresh case on **22.9.2020** before the appropriate Bench.

Order Date :- 16.9.2020

A. V. Singh

Court No. - 48

Case :- WRIT - C No. - 13858 of 2020

Petitioner :- Ram Das

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Kumar Chaurasia, Ashok Kumar Chaudhary

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Misra, J.

Hon'ble Shekhar Kumar Yadav, J.

Heard Mr. Ashok Kumar Chaudhary, learned counsel for the petitioner, learned Standing Counsel for the respondent No. 1 and Mr. Mahboob Ahmed, learned counsel for the respondent Nos. 2 and 3.

By this petition the petitioner has challenged the demand notices dated 25.6.2020 and 30.6.2020 of Rs. 8,24,637/- and Rs. 8,38,423/- respectively against a solitary electricity connection.

The case of the petitioner is that the demand has been raised without proper checking of the meter reading, as a result, the petitioner made a request for revision of the demand by properly checking the meter. But the said request had not been addressed and the respondents are proceeding to recover the dues.

Mr Mahboob Ahmed, who appears for the respondent Nos. 2 and 3, has submitted that under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the Executive Engineer has power to correct the bill amount and, therefore, this petition may be disposed off by requiring the Executive Engineer to take appropriate decision on the request, if any, made by the petitioner, subject to his deposit of some portion of the demanded amount to show his bona-fide.

Considering the facts of the case, we deem it appropriate to dispose of the petition by providing that if the petitioner deposits one-fourth of the demand amount, as contained in subsequent bill/demand dated 30.06.2020, within two weeks from today, and submits his representation in respect of correction of the bill/demand raised by the department before the respondent No. 3, within the said period, the same shall be addressed and decided by the respondent No. 3 in accordance with law, by a speaking order, preferably, within next four weeks after giving opportunity of hearing to the petitioner. Subject to above, till the decision on the representation, no coercive action to recover the demanded amount shall be taken.

It is made clear that if deposit and representation as provided above is not made, there shall be no protection.

The petition stands ***disposed off***.

Order Date :- 22.9.2020/SY